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File No.: EXP202314144

RESOLUTION ON THE ARCHIVING OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: A.A.A. (hereinafter the claimant) filed a complaint with the Spanish Agency for Data Protection against XFERA MÓVILES, S.A.U. with NIF A82528548 (hereinafter, XFERA) on October 3, 2023. The reasons for the complaint are as follows:

The claimant states that they continuously receive calls from various phone numbers, addressing them by their full name, indicating that they are a customer of YOIGO. The claimant points out that they are not a customer of YOIGO and has communicated this on several occasions.

Furthermore, they state that they have requested the deletion of their data, and that they are on the ROBINSON list, and therefore, XFERA must have their authorization to make commercial calls.

Along with their complaint, they provide:

- An email confirming the registration/modification of data in the Robinson List, which reads:
“(…)

In response to your request for data change in the Robinson List Service, we confirm that, on 13/04/2015 at 14:57:13, the following data has been registered:
“(…)”

- A recording in which the caller identifies themselves as from the “YOIGO information area” and in which the interlocutor states they are not a customer of YOIGO; no commercial information is provided. In the recording, the claimant can be heard stating that they are not a customer of YOIGO and requesting not to be called again. Additionally, the caller on behalf of the company only states that the claimant appears in their database as a customer.

- A telephone bill issued by PARLEM containing the following information:

“Parlem Telecom Companyia de Telecomunicacions - C/ ***ADDRESS.1

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Registered in the Mercantile Registry of Barcelona in volume 43394, page 142, sheet number B-428187

This bill is issued by PARLEM on behalf and representation of Xfera Móviles, S.A.U., with CIF/NIF A82528548, as the operator of the mobile telephone and internet service.”

SECOND: On October 11, 2023, the “Association for the Self-Regulation of Commercial Communication” was notified, the body responsible for supervising the Code of Conduct for the “Processing of Data in Advertising Activity” in accordance with section 10.1 of said code, so that, once the mediation procedure is completed, it informs the AEPD of its outcome and the information contained in said file, in accordance with the provisions of article 10.4 of the aforementioned Code. The notification, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), via certified postal mail, was received on October 16, 2023, as evidenced by the acknowledgment of receipt in the file.

On November 24, 2023, this Agency received the response, which communicated, among other issues:

“(…)”

In accordance with the provisions of section 10.4 of the Code of Conduct, we inform you that the company being complained against has provided a response with which the claimant has expressed their disagreement. Therefore, we inform you that from AUTOCONTROL we consider the file closed...
“(…)”

THIRD: On December 11, 2023, in accordance with article 65 of the LOPDGDD, the complaint submitted was admitted for processing.

FOURTH: The General Subdirector for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in article 57.1 and the powers granted in article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following details:

According to the representatives of the entity, the claimant is listed as a customer of the PARLEM brand since 2021, having the following information in their files:

- Personal Data: A.A.A.
- ID Number: (...).
- Date of Birth: (...)
- Installation Address: (...).

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- Billing Address: (...)
- Billing Information: (...)
- Contact Email: (...)
- Contact Phone: (...)

The services contracted in the name of the client are as follows:

- ***PHONE.1 FIBER 300 PARLEM – activation XXXXXXXXXXXXXXXX
- ***PHONE.2 VOLEM RATE 30GB – activation XXXXXXXXXXXXXXXX
- ***PHONE.3 Volem Rate 5GB Ad – activation XXXXXXXXXXXXXXXX
- ***PHONE.4 VOLEM RATE 10GB AD – activation XXXXXXXXXXXXXXXX
- ***PHONE.5 VOLEM RATE 10GB AD – activation XXXXXXXXXXXXXXXX

There are no lines that have been canceled.

Recordings corresponding to the contracts of March 22, 2021, and June 15, 2023, are attached.

The call on 06/15/2023 refers to the contracting of the line ***PHONE.4 (new activation). The call on 03/22/2021 refers to the contracting of the line ***PHONE.5 (new activation).

Regarding the contracting corresponding to the fiber pack ***PHONE.1, ***PHONE.2, ***PHONE.3 from February 26, 2021, they have located the recording. However, they currently cannot download it due to a technical problem.

In the context of the contracting on February 26, 2021, a copy of the ID and a bank receipt were collected to confirm the ownership of the bank account where the payments are domiciled. The rest of the services have been contracted with the same data, and the SIM cards for the lines contracted subsequently were sent to the same address where the installation took place.

They provide a copy of the ID and bank receipt.

They also provide a list of invoices issued for each of the services contracted by the claimant, showing that there is indeed consumption and that they have been paid by the account holder.

Regarding the basis of legitimacy under which XFERA MOVILES SAU processes data of clients of PARLEM TELECOM COMPANIA DE TELECOMUNICACIONES S.A, the representatives of XFERA MÓVILES indicate that the entity processes the data as the data controller based on Article 6.1.b) of the GDPR.

XFERA is a telecommunications operator providing the services contracted by PARLEM's clients.

PARLEM acts as a marketer, under its own brand, of XFERA's services. For these purposes, PARLEM and XFERA signed a Collaboration Agreement for the marketing of mobile phone services in the white label modality dated October 29, 2014, and a Collaboration Agreement and provision of services in the marketing of convergent and fixed electronic communications services in the white label modality dated June 18, 2018. Within the framework of these contracts, in which PARLEM is configured as the data processor, there is an obligation to inform in any case who the service provider is under these

Agreements, which is XFERA; they provide an excerpt from this last contract.

Therefore, a client subscribes to a contract both with PARLEM for the services provided by it and with XFERA, or another operator that may provide the services that PARLEM does not cover.

Regarding the services provided by XFERA, these are provided under the PARLEM brand. The client enters into a contractual relationship with XFERA by accepting its general contracting conditions, with PARLEM acting in relation to the contracting of XFERA's services as the data processor.

In relation to the information previously provided to the affected party regarding the processing of their personal data, the representatives of the entity provide the general contracting conditions of XFERA that are provided by PARLEM to the clients.

This document states:

"7. Protection of personal data

The provision of MÁSMÓVIL Services involves the processing of personal data of the Client, which will be processed in accordance with the provisions of these General Conditions and the Privacy Policy.

10.1. Who is responsible for the processing of your data?

The data controller is the company XFERA MÓVILES, S.A.U. ("MÁSMÓVIL"), N.I.F. A-82528548 and located at ***ADDRESS.2 (Madrid), Spain. You can contact our Data Protection Officer (DPD or DPO) by sending an email to ***EMAIL.1. You have complete information regarding how we process your data in our privacy policy, which you can consult at [Privacy Policy]."

These conditions had to be necessarily accepted in the context of the contracting of the line ***PHONE.4 as they were in effect at that time.

LEGAL GROUNDS

I

Competence

In accordance with the provisions of Article 114.1.b) of Law 11/2022, of June 28, General Telecommunications Law (hereinafter LGTel) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and guarantee of digital rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

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Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

Finally, the Fourth Additional Provision "Procedure in relation to the powers attributed to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions in Title VIII and its implementing regulations shall apply to the procedures that the Spanish Agency for Data Protection must process in exercising the powers attributed to it by other laws."

II

Right to the protection of personal data and privacy in relation to unsolicited communications, traffic and location data, and subscriber directories.

Article 66.1.b) of Law 11/2022, of June 28, General Telecommunications establishes:

"Regarding the protection of personal data and privacy in relation to unsolicited communications, end users of publicly available interpersonal communication services based on numbering shall have the following rights:

b) not to receive unwanted calls for commercial communication purposes, unless there is prior consent from the user themselves to receive such commercial communications or unless the communication can be justified under another legal basis provided for in Article 6.1 of Regulation (EU) 2016/679 on the processing of personal data."

In turn, Article 6.1 of the GDPR states:

“Processing shall be lawful only if at least one of the following applies:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) processing is necessary to protect the vital interests of the data subject or of another natural person;
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.”

In the case at hand, the complainant indicated that they had received numerous commercial calls from the operator YOIGO and provided a recording in which the complainant could be heard denying being a customer of YOIGO.

They also provided copies of invoices from the company PARLEM, stating that it was their telephone operator.

In the preliminary proceedings, XFERA stated that the complainant is registered as a customer of the PARLEM brand since 2021 with five lines, both fixed and mobile.

It adds that XFERA is a telecommunications operator providing the services contracted by PARLEM customers. In this regard, it states that PARLEM acts as a marketer, under its own brand, of XFERA's services.

For these purposes, PARLEM and XFERA signed a collaboration agreement for the marketing of mobile telephone services in the white label modality dated October 29, 2014, and a collaboration and service provision agreement for the marketing of convergent and fixed electronic communications services in the white label modality dated June 18, 2018.

It adds that PARLEM, within the framework of these contracts, is configured as the data processor, and there is an obligation to inform in all cases that the service provider under these agreements is XFERA, providing an extract of this last contract to substantiate this circumstance.

Thus, in this context, the customer enters into a contract with PARLEM for the services provided by it, and with XFERA or another operator that may provide the services that PARLEM does not cover.

Regarding the services provided by XFERA, it states that they are provided directly by XFERA to the customer, but under the PARLEM brand.

The customer establishes a contractual relationship with XFERA by accepting its general contracting conditions, with PARLEM acting as the data processor.

In relation to the information previously provided to the affected party regarding the processing of their personal data, the representatives of the entity provide the

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General contracting conditions of XFERA provided by PARLEM to the clients. This document includes:

“7. Protection of personal data

The provision of MÁSMÓVIL Services involves the processing of personal data of the Client, which will be processed in accordance with the provisions set forth in these General Conditions and the Privacy Policy.

10. 1. Who is responsible for the processing of your data?

The data controller is the company XFERA MÓVILES, S.A.U. (“MÁSMÓVIL”), N.I.F. A-82528548 and located at Avenida de Bruselas, 38, 28108 Alcobendas (Madrid), Spain. You can contact our Data Protection Officer (DPD or DPO) by sending an email to ***EMAIL.2. You have complete information

regarding how we process your data in our privacy policy, which you can consult at [Privacy Policy]" These conditions had to be necessarily accepted within the framework of the contracting of the line ***TELÉFONO.4 as they were in force at that time.

III

Conclusion

The claiming party is a client of PARLEM, which is the brand in Catalonia of YOIGO, therefore this entity has their data, as they have contracted numerous telecommunications services with XFERA MÓVILES S.A.U., which acts as the data controller. XFERA offers telecommunications services through different brands, including PARLEM or YOIGO.

There are no fraudulent contracts in the name of the affected party.

On the other hand, in the call recorded by the affected party, they identify themselves as from the "YOIGO information area." In it, the claiming party states that they are not a client of YOIGO, but it is also noted that they do not provide commercial information.

Therefore, based on the information indicated in the previous paragraphs, no evidence has been found that substantiates the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection.

All of this is without prejudice to any possible subsequent actions that this Agency may carry out, applying the investigative and corrective powers it holds.

Thus, in accordance with what has been indicated, by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO PROCEED TO THE FILING of the present proceedings.

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SECOND: TO NOTIFY this resolution to XFERA MÓVILES, S.A.U. and to the claiming party.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

940-301023

Mar España Martí

Director of the Spanish Agency for Data Protection

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